P.B. No. 104

Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY PARLIAMENT
Bangsamoro Government Center, Cotabato City

FOURTH REGULAR SESSION

BANGSAMORO AUTONOMY ACT NO. 78

Begun and held in Cotabato City on Thursday, the 15th day of September 2022.

AN ACT ESTABLISHING A LEVEL I GENERAL HOSPITAL IN THE MUNICIPALITY OF TIPO-TIPO, PROVINCE OF BASILAN, AND APPROPRIATING FUNDS THEREFOR

Be it enacted by the Bangsamoro Transition Authority Parliament in session assembled:

SECTION 1. ***Creation.*** – There shall be established a Level I general hospital with a twenty-five (25)-bed capacity in the Municipality of Tipo-Tipo, Province of Basilan, to be known as the *"Tipo-Tipo General Hospital (TGH)."*

SEC. 2. ***Administration and Supervision.*** – The TGH shall be under the administrative supervision and operational control of the Ministry of Health (MOH), which is hereby authorized to determine and approve the organizational structure necessary for the effective and efficient management and operation of the hospital.

The MOH shall formulate the necessary guidelines for its operations as a Level I hospital and ensure funding for the construction of the hospital building and other complementary infrastructure, facilities, and medical equipment, as well as the initial costs for maintenance and personnel services, as may be required pending the full transfer of management in accordance with Sections 5 and 6 of this Act.

The MOH shall promulgate the necessary rules and regulations to implement the provisions of this Act within ninety (90) days from its effectivity.

SEC. 3. ***Submission of Annual Development Plan and Alignment of Resources for TGH.*** – The Chief of Hospital of the TGH, in consultation and coordination with the Basilan Integrated Provincial Health Office, shall submit to the MOH an annual development plan reflecting the developmental goals of the hospital. The medical personnel, capital outlays, and budgetary needs for the operation of the TGH shall be based on the annual hospital development plan.

Any future increase in bed capacity and upgrading of healthcare services and facilities shall be consistent with the annual hospital development plan.

SEC. 4. ***Integration of the Universal Health Care Program.*** – All relevant and pertinent provisions of Republic Act No. 11223, otherwise known as the *"Universal Health Care Act"*, shall be integrated into the operational system of the TGH.

SEC. 5. ***Transfer of Management and Control of TGH to the Provincial Government of Basilan.*** – The full management and control of the TGH shall be transferred from the Bangsamoro Government to the Provincial Government of Basilan upon the occurrence of either of the following, whichever comes first:

a) A formal request from the Provincial Government of Basilan, with the concurrence of the MOH confirming the local government unit's readiness and institutional capacity to manage the hospital; or

b) A favorable assessment conducted by the MOH, every five (5) years, in accordance with its prescribed guidelines and standards, determining that the Provincial Government possesses sufficient administrative, technical, and financial capability to independently operate the hospital.

Upon determination of either condition, the MOH shall issue a formal order of transfer, which shall take effect upon completion of a joint transition plan to be developed by the MOH and the Provincial Government. This plan shall outline the phased turnover of responsibilities, personnel, assets, and systems, and shall include a clear timetable for implementation not exceeding one (1) year from the issuance of the transfer order.

The transition plan shall be submitted to the Bangsamoro Parliament, through the Committee on Health, for information and monitoring, in line with the oversight function of the Bangsamoro Parliament under its legislative mandate.

SEC. 6. ***Sunset Provision.*** – Notwithstanding the transfer of full management and control of the TGH to the Provincial Government of Basilan, the Bangsamoro Government, through the MOH, shall continue to provide technical support and, when necessary, financial support for the operation and administration of the hospital.

For purposes of this Act, financial support shall refer to the temporary augmentation of operational requirements that the Provincial Government of Basilan is unable to provide, including, but not limited to, personnel salaries, essential medical supplies, and equipment maintenance. Technical support shall include, among others, capacity building for hospital staff, policy guidance, health systems monitoring, and quality assurance.

The MOH shall submit an annual report to the Bangsamoro Parliament, through the Committee on Health and the Committee on Finance, Budget, and Management, detailing the nature, scope, and impact of such support, in accordance with the oversight function of the Parliament over the implementation of this Act. The obligation of the MOH to submit such annual report shall continue only for the duration of its financial or technical support to the hospital.

SEC. 7. ***Appropriation.*** – An initial amount of Fifty Million Pesos (PHP50,000,000.00), necessary to carry out the provisions of this Act, shall be charged against the 2025 General Appropriations Act of the Bangsamoro. Thereafter, the funds required for the continued operation and maintenance of the hospital shall be included in the annual appropriations of the Bangsamoro Government.

SEC. 8. ***Separability Clause.*** – The provisions of this Act are hereby declared separable, and in the event one or more such provisions or parts thereof are declared unconstitutional, such declaration of unconstitutionality shall not affect the validity of the other provisions thereof.

SEC. 9. *Repealing Clause.* – All regional laws, acts, decrees, executive orders, proclamations, rules, regulations, and other issuances inconsistent with this Act are hereby amended, modified, superseded, or repealed accordingly.

SEC. 10. *Effectivity.* – This Act shall take effect fifteen (15) days after its publication in the Official Gazette or in a newspaper of general circulation within the Bangsamoro Autonomous Region in Muslim Mindanao.

ATTY. PANGALIAN M. BALINDONG
Speaker

This Act was passed by the Bangsamoro Transition Authority Parliament on *Safar* 26, 1447/August 20, 2025.

PROF. RABY B. ANGKAL
Secretary-General

Approved:

ABDULRAUF A. MACACUA
Chief Minister
Date: SEP 24 2025

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